

**BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA**

J. Shane Creamer, Jr.	:	
Executive Director	:	
Board of Ethics	:	
of the City of Philadelphia	:	
1515 Arch Street, 18 th Floor	:	
Philadelphia, PA 19102	:	
	:	Matter No: 2510ET24
v.	:	
Dee Dukes	:	Date of Issuance & Mailing: June 18, 2026
	:	
	:	
deedukes33@gmail.com	:	

ORDER

For the reasons stated in the accompanying Final Determination, the Board of Ethics hereby imposes a civil monetary penalty of \$250 to be paid within thirty-five (35) days of the date of issuance and mailing of the Final Determination and this Order. Payment shall be by check or money order made payable to the City of Philadelphia and delivered to the Board's office at the following address:

City of Philadelphia Board of Ethics
One Parkway Building
1515 Arch Street, 18th Floor
Philadelphia, PA 19102

The Board's Final Determination and this Order shall be the final agency action.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Acting Chair
Hon. Nelson A. Diaz (Ret.), Member
Jim Engler, Esq., Member
Wesley R. Payne, IV, Esq., Member
Hon. Idee C. Fox (Ret.), Member

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FINAL DETERMINATION

On October 23, 2025, the Executive Director of the Board of Ethics initiated an administrative enforcement proceeding against Respondent Dee Dukes alleging that Respondent did not file timely a Statement of Financial Interest in violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Respondent waived her right to a hearing. This Final Determination constitutes the Board’s adjudication of the matter on the administrative record. As described in more detail herein, we find that Respondent committed a single violation of the financial disclosure filing requirement and impose a penalty of \$250.

I. JURISDICTION

Philadelphia Home Rule Charter Section 4-1100 provides that the Board of Ethics “shall administer and enforce all provisions of this Charter and ordinances pertaining to ethical matters,” including the City’s Ethics Code, which is set forth at Philadelphia Code Chapter 20-600 and includes, at Section 20-610, the requirement to file an annual statement of financial interests.

II. ADMINISTRATIVE ADJUDICATION OF ETHICS VIOLATIONS

Home Rule Charter Section 4-1100 provides that the Board “shall conduct its enforcement activities either by bringing enforcement actions in the Court of Common Pleas or, if authorized by Council by ordinance, administratively adjudicating alleged violations and imposing civil penalties and other remedies for violations.” Code Section 20-606(1)(h) authorizes the Board to administratively adjudicate alleged violations of the laws within its jurisdiction.

Pennsylvania’s Local Agency Law, 2 Pa.C.S. § 105 et seq., sets forth the essential rules and procedures for adjudications conducted by a municipal administrative agency. Board Regulation No. 2 provides detailed procedures and requirements for such adjudications. Notably, in order to comply with the due process requirements articulated by the Pennsylvania Supreme Court in *Lyness v. Commonwealth*, 529 Pa. 535 (1992), Regulation No. 2 mandates that the Board “shall maintain a separation between the adjudicative functions and the investigatory or prosecutorial functions.” As a result, the individual members of the Board, any Hearing Officer in a particular case, and the General Counsel are part of the adjudicative function, while the Executive Director and Enforcement Staff assisting them are part of the prosecutorial function. At all times, the Board, its Hearing Officer, and Board Staff take care not to commingle the adjudicatory and prosecutorial functions of the agency.

Paragraph 2.16 of Regulation No. 2 provides that the Board may “appoint a Hearing Officer to oversee pre-hearing disclosures, preside over a hearing, and prepare Findings of Fact and Conclusions of Law for the Board’s consideration.” The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 (“Supplemental Procedures”) further outline the role of the Hearing Officer, including that “[t]he Hearing Officer or the

General Counsel (if a Hearing Officer has not been appointed), shall also have the discretion to schedule such pre-hearing conferences and issue amended or supplemental orders as are necessary for the fair and expeditious adjudication of the case.”

On March 17, 2021, the Board appointed Louis S. Rulli, the Practice Professor of Law and Director of the Civil Practice Clinic and Legislative Clinic at the University of Pennsylvania School of Law, to serve as a Hearing Officer. Mr. Rulli presided over the proceedings in this case.

III. PROCEDURAL HISTORY

The Executive Director of the Board of Ethics initiated this administrative enforcement proceeding by serving a Notice of Administrative Enforcement Proceeding (“Notice”) on Respondent on October 23, 2025.¹ (Docket No. (“Doc.”) 1.) The Notice alleged that Respondent violated Philadelphia Code Section 20-610 (Statement of Financial Interests) as interpreted by Board Regulation No. 3. (Notice at ¶¶7-8.)

The Hearing Officer issued Procedural Instructions on October 29, 2025 (Doc. 2.) explaining the process for administrative enforcement proceedings before the Board. The Procedural Instructions advised that a Response to the Notice must be filed on or before November 12, 2025. On November 12, 2025, Respondent requested an extension of time to respond to the Notice. The Hearing Officer granted this request and set a new deadline of November 17, 2025. (Doc. 4.) On November 17, 2025, Respondent filed her Response to the

¹ Initial service was made via email with delivery confirmation to deedukes33@gmail.com (hereinafter her “personal email”). Regulation No. 2, Paragraph 2.13(b) permits that the Notice be served by “any other method that provides delivery confirmation.” Item 1 of the Supplemental Procedures further provides for service of filings via email. On October 24, 2025, Respondent emailed the Executive Director and General Counsel from deedukes33@gmail.com to request that all further communications related to this matter be served by mail. In accordance with this request, all subsequent communications related to this matter were sent via both email and mail delivery.

Notice. (Doc. 5.) In her Response, Respondent affirmatively stated she did not want a hearing on this matter. (*Id.*)

The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 (“Supplemental Procedures”) allow the Executive Director to file a brief in support of the Notice if a respondent does not request a hearing. Consistent with the Supplemental Procedures, the Hearing Officer issued a Briefing Order on November 20, 2025, requiring the Executive Director to file his brief no later than December 1, 2025. (Doc. 6.) The Briefing Order explained that Respondent could file a response to the Executive Director’s brief within fourteen days of service.

On December 1, 2025, the Executive Director filed a Brief in Support of the Notice. (Doc. 7.) On December 5, 2025, Respondent requested an extension of time to respond to the Executive Director’s submission. The Hearing Officer granted Respondent’s request, giving her until January 5, 2026, to file her brief. (Doc. 8.) On January 5, 2026, Respondent filed her Brief in Opposition to Notice of Administrative Enforcement Proceeding. (Doc. 9.)

On February 19, 2026, the Hearing Officer issued an Order to Close the Administrative Record explaining that after February 24, 2026, there would be no further opportunity to submit evidence or argument. (Doc. 10.) The parties had until 5:00 p.m. on February 24, 2026, to object to the closure of the record. Neither party filed an objection or additional materials for the record.

IV. FACTUAL BACKGROUND

In January 2024, the Mayor appointed Respondent to serve on the Educational Nominating Panel (“ENP”). (ENP Official Transcription of Minutes, Feb. 1, 2024 (“ENP Tr.”), Executive Director’s Brief (“ED’s Br.”) at Ex. B.) The ENP screens potential nominees for the Board of Education. Charter §12-207. Upon taking office, the Mayor must convene the ENP no

later than February 1 of the year that the Mayor's term begins. *Id.* at (a). The ENP has only a few weeks to submit a list of potential nominees to the Mayor. *Id.* at (b). While ENP appointments technically continue for a period of four years, once the list of nominees is submitted the ENP does not meet, conduct business, or otherwise have any functional existence unless it is formally reconvened to fill a vacancy on the Board of Education. *Id.* at (a)(2).

The newly convened ENP held its first public meeting on February 1, 2024. (ENP Official Transcription of Minutes, Feb. 1, 2024 ("ENP Tr."), Executive Director's Brief ("ED's Br.") at Ex. B.) The first order of business was the adoption of the Rules of Procedure for the ENP. (*Id.* at 1.) The ENP voted to adopt the Rules of Procedure. (*Id.*) The rules were circulated to ENP members and publicly posted on the ENP's website. (Stmt. of John Dolan, ENP Tr. at 1.) The published Rules of Procedure include a summary of ethical responsibilities for ENP members, including a mention of financial disclosure filing requirements. *See* ENP Rules of Procedure, Feb. 2024, available at <https://www.phila.gov/media/20240213174056/2024-Educational-Nominating-Panel-Rules-of-Procedure.pdf> at 3. The ENP held its last public meeting on March 12, 2024. ENP Meeting Agenda for March 12, 2024, available at <https://www.phila.gov/media/20240311151759/ENP-Second-Public-Meeting-Agenda-pdf.pdf>.²

The Ethics Code requires certain individuals to file a Statement of Financial Interest. Philadelphia Code § 20-610(1). Members of the Educational Nominating Panel are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they

² The Hearing Officer took judicial notice of public records of the proceedings of both the ENP and the Board. While the Board is not bound by strict rules of evidence, we note that the Pennsylvania Rules of Evidence provide for judicial notice at any stage of the proceeding. Pa. R.E. 201(d). We find that official records or minutes of public proceedings of City boards and commissions can provide facts regarding what was done or said at those proceedings that "can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Pa. R.E. 201(b)(2).

leave such office. Phila. Code § 20-610(1); Bd. Reg. 3. Since the ENP met and conducted business in 2024, its members were required to file SFIs for 2024 by May 1, 2025.

Respondent did not file an SFI by May 1, 2025. (*See* Respondent's SFI, E.D.'s Br. at Ex. A.) Board staff sent three emails to Respondent at dukes.phillyeducationpanel2024@gmail.com notifying her that her 2024 SFI was overdue. Specifically, the Board's Investigative Analyst Alexander Kramer sent a letter via email on May 8, 2025, advising Respondent that she had "30 days to cure this defect," after which the matter would be referred for enforcement. (ED's Br. at Exs. D, E.) On May 22, 2025, Mr. Kramer sent another email to Respondent stating that the electronic filing system still reflected the absence of a disclosure filing by Respondent and reminding her of the thirty-day period in which to file. (ED's Br., Ex. D.) On June 13, 2025, Mr. Kramer sent another letter to Respondent via email stating that after June 30, 2025, the matter could only be resolved through the Board's Enforcement Division and could carry a civil monetary penalty of up to \$2,000. (*Id.*)

Respondent states that she did not receive any of the above compliance messages. (Respondent's Response ("Resp.") at 3.) According to Respondent, the email address to which Mr. Kramer sent the compliance messages described above – dukes.phillyeducationpanel2024@gmail.com – was an account she created at the recommendation of City staff assigned to the ENP and used exclusively for confidential correspondence related to the ENP. (*Id.* at 2.) Respondent does not state how often or during what time period she used her ENP email address, nor does she state whether she provided any other email addresses to ENP or other City personnel prior to May 1, 2025. Respondent does not claim that she lacked the ability to access her ENP email account. Instead, Respondent states that

her ENP email address was not “active” after the ENP’s work ended. (*See* Respondent’s Brief (“R’s Brief”) at 6; Resp. at 3.)

Respondent asserts that she did not receive onboarding materials, training, or reminders during her ENP service. (R’s Brief at 3.) The Executive Director did not offer any evidence relating to training, emails, or other information Respondent may have been sent or received in advance of the May 1, 2025, filing deadline. Published Board records show that Board staff presented ethics training to the ENP on February 1, 2024.³ Bd. of Ethics Public Mtg. Minutes for Feb. 21, 2024, Attachment B, Feb.16, 2024 Gen. Counsel’s Rpt. at 1 available at <https://www.phila.gov/media/20240412110351/BOE-minutes-20240221.pdf>. Board staff also held additional General Ethics and Financial Disclosure Info Sessions available to all City officers and employees in 2024 and 2025. *Id.* (General Ethics Feb. 14, 2024); *see also* Bd. of Ethics Public Mtg. Minutes for Mar. 20, 2024, Attachment B, Mar. 15, 2024 Gen. Counsel’s Rpt. at 1 available at <https://www.phila.gov/media/20240517103341/BOE-minutes-20240320.pdf> (General Ethics Mar. 26 & Apr. 11, 2024; Financial Disclosure Mar. 21 & Apr. 3, 2024); Bd. of Ethics Public Mtg. Minutes for Mar. 19, 2025, Attachment B, Mar. 14, 2025 Gen. Counsel’s Rpt. at 2 available at <https://www.phila.gov/media/20250523125814/BOE-minutes-20250319.pdf> (Financial Disclosure Mar. 12, 2025); Bd. of Ethics Public Mtg. Minutes for Apr. 16, 2025, Attachment B, Apr. 10, 2025 Gen. Counsel’s Rpt. at 2 available at <https://www.phila.gov/media/20250523125847/BOE-minutes-20250416.pdf> (Financial Disclosure Mar. 26 & Apr. 10).

³ The Hearing Officer took judicial notice of the Board’s monthly public session meeting minutes. The monthly General Counsel’s Report is attached to these minutes and includes a calendar of the trainings provided in the interval since the last such report. Thus, the Board’s public session minutes for February 21, 2024, contain a calendar detailing all training presented by Board staff between January 13, 2024, and February 16, 2024.

According to Respondent, the first time she learned that she had to file an SFI for 2024 was when a member of the Board's staff called her on her cell phone at the end of July 2025.⁴ (Resp. at 2, R's Brief at 3.) She does not identify the name of the individual who called her. Respondent asserts that she was told by this individual that all she needed to do was file her disclosure statement, and there was no mention of a potential penalty. (Resp. at 2-3.)

Respondent further alleges that during the July telephone call she provided the caller with her personal email address and asked for a copy of the SFI form. (Resp. at 2-3.) Respondent asserts that while she "eventually" received the SFI form via email, she did not understand how to complete it. (*Id.*) On September 25, 2025, Respondent obtained help from an unnamed individual to complete the SFI form. (*Id.*) Respondent did not offer any email messages, telephone records, or other documents evidencing the existence, timing, or content of these alleged contacts with Board staff.

The Executive Director disputes that the Respondent's telephone call in July 2025 was with a Board staff member, positing that this call may have been with a member of the Chief Integrity Officer's staff. (ED's Brief at 6, n.4.) The Executive Director does not address whether he agrees that a member of Board staff provided filing assistance to Respondent on September 25, 2025. It is undisputed, however, that Respondent filed her 2024 SFI via the Board's electronic filing system on September 25, 2025. (Resp. at 3.)

⁴ In her Response, Respondent states that she received this phone call at the end of July 2025. Resp. at 2. In her Brief in Opposition, she states that the call took place in July or August 2025. (R's Brief at 1, 4, 5.)

V. RELEVANT LAW

a. Standards for Administrative Adjudication

In its adjudicative role, the Board must “determine, by a preponderance of the evidence, whether a violation of applicable law has occurred.” Reg. 2, ¶ 2.20. The Executive Director bears the burden of proof and must establish each element of each alleged violation. *See Hui v. City of Philadelphia Parking Auth.*, 913 A.2d 994, 1000-01 (Pa. Commw. Ct. 2006). The Board’s findings of fact must be supported by substantial evidence. *Monaghan v. Bd. of Sch. Dir.*, 618 A.2d 1239, 1243-44 (Pa. Commw. Ct. 1992). Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion. *Mrs. Smith's Frozen Foods Co. v. Workmen's Comp. Appeal Bd. (Clouser)*, 539 A.2d 11, 14 (Pa. Commw. Ct. 1988); *see also Bonatesta v. N. Cambria Sch. Dist.*, 48 A.3d 552, 558 (Pa. Commw. Ct. 2012).

Paragraph 2.14(c) of Regulation No. 2 provides that “[a] respondent’s failure to request a hearing in their written response to the Notice is a waiver of the right to a hearing.” Paragraph 2.20 of Regulation No. 2 describes the process by which the Board shall make final determinations. Paragraph 2.20(b) further explains:

If the respondent does not request a hearing, the Board may make its final determination based on:

- i. Undisputed allegations in the Executive Director’s Notice of Administrative Enforcement Proceeding; or
- ii. Evidence submitted by the Executive Director in support of the Notice of Administrative Enforcement Proceeding, including but not limited to deposition transcripts, documents, and affidavits or declarations.

b. Requirement to File a Statement of Financial Interests

Section 20-610 of the Philadelphia Code provides:

(1) The following individuals shall file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the

individual leaves such office. All such individuals who take office after the effective filing date or less than thirty (30) days before the effective filing date must file a statement of financial interest for the preceding calendar year within thirty (30) days of taking office.

(e) Members and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation;

Section 20-601(4) defines “board or commission member” as “[a] member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order.”

Section 20-606(1)(e)(.2) of the Code provides that

The Board shall issue rules and regulations concerning the filing of Statements of Financial Interest for the purpose of ensuring compliance by all City officers and employees with the applicable provisions of financial disclosure law. The Board shall investigate any instances of non-compliance and take appropriate action.

Consistent with this directive, the Board promulgated Regulation No. 3 (Statements of Financial Interests) in December 2021 to clarify and interpret the SFI filing requirements. Subpart B of Board Regulation No. 3 lists who must file an SFI, including members of City boards and commissions who must file an SFI. Specifically, Paragraph 3.6 of Regulation No. 3 requires filing by “[a] member of the Educational Nominating Panel, Civil Service Panel, Citizens Police Oversight Commission Selection Panel, or Finance Panel.” Paragraph 3.7 of Regulation No. 3 provides further instruction as to when filers must submit an SFI:

- a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.
- b. An individual who takes office after the first day of April shall file within 30 days of taking office.

Example 4 details when a member of a nominating panel must file an SFI:

A nominating panel listed in Paragraph 3.6 convenes on September 15, 2021 and concludes its work on November 1, 2021. The panel's members must each file a Statement of Financial Interests with the Board by October 15, 2021 disclosing information related to calendar year 2020. They must also each file a Statement of Financial Interests with the Board by May 1, 2022 disclosing information related to calendar year 2021.

c. Civil monetary penalties

Code Section 20-612 provides that penalties for violations of the Ethics code "shall be as set forth in Chapter 20-1300." Section 20-1302 provides for penalties for all violations not enumerated in Section 20-1301 as follows:

All other violations of Chapters 20-600 or 20-1000 shall be subject to a fine or civil penalty of one thousand dollars (\$1,000), subject to the following provisions.

(1) Definitions. For purposes of this Section the following definitions apply.

(a) *Mitigating Factors*. The following are mitigating factors:

- (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
- (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
- (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors*. The following are aggravating factors:

- (.1) *Intent*. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
- (.2) *Repeat violation*. The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
- (.3) *Obstruction of investigation*. The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

(2) *Consideration and Effect of Mitigating Factors and Aggravating Factors*.

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

(c) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars (\$1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars (\$2,000).

Regulation No. 3, Paragraph 3.19 further provides for civil monetary penalties to be assessed for violations of the SFI filing requirements:

An officer or employee of the City who violates any of the restrictions set forth in this Regulation shall be subject to a civil penalty of up to \$2,000 for each such violation. In determining the appropriate amount of monetary penalty, the Board may consider both mitigating and aggravating factors. Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

VI. ANALYSIS

a. Violation of Section 20-610 and Regulation No. 3

The Notice has one count for a single violation of Section 20-610 and Regulation No. 3 based on Respondent's failure to file an SFI disclosing financial interests for 2024 by May 1, 2025. (Notice at ¶¶7-8.) The elements of a *prima facie* case for failure to file an SFI are straightforward. The Executive Director must show by a preponderance of the evidence that Respondent:

- held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3;
- served in that position in 2024; and
- did not file an SFI disclosing financial interests for 2024 by May 1, 2025.

The Executive Director set forth factual allegations in the Notice that he supplemented with evidence submitted through his Brief in Support. Respondent admitted both that she was a member of ENP in 2024 and that she filed her 2024 SFI on September 25, 2025.

Paragraph 2.20 of Regulation No. 2 provides that our final determination may be based on the uncontested facts in the Notice and any evidence submitted by the Executive Director in support of the Notice. *See* Bd. Reg. No. 2, ¶2.20(b). The Supplemental Procedures further provide for briefing by both the Executive Director and a respondent where a hearing is waived. Supplemental Procedures at Item 5. Between the Notice and his Brief in Support, the Executive Director has sufficiently alleged uncontested facts and presented evidence to support each element of a violation of the SFI filing requirement.

It is undisputed that Respondent served on the ENP in 2024. Regulation No. 3 requires that, if the ENP is convened, all members must file an SFI. Reg. 3, ¶3.6. The regulation clearly explains that a member of a nominating panel (like the ENP) must file an SFI disclosing their financial interests in any calendar year in which the panel was convened, even if the May 1 deadline arises after the panel's work has ended. Reg. 3, ¶3. 19, Example 4. It is further uncontested that Respondent did not file her 2024 SFI until September 25, 2025. (Notice at ¶6.)

Despite the uncontested facts, Respondent argues that we should not find a violation of Section 20-610 because she did not know that she was required to file a 2024 SFI. Respondent asserts that the "Board must provide proper notice to the individual so as not to prejudice the rights and responsibility of an individual." (Resp. at 2.) In support of this argument, Respondent relies on her assertions that she (a) did not receive any training or documents relating to the SFI

requirement during her ENP service (Resp. at 4; R's Brief at 3); (b) was not informed that she must file a 2024 SFI (Resp. at 2, R's Brief at 2); (c) was not warned that there might be a penalty for late filing (Resp. at 4); and (d) did not receive any reminders to file an SFI until after the May 1, 2025 deadline (Resp. at 3; R's Brief at 3). In essence, Respondent argues that there was no violation because her failure to timely file her 2024 SFI was due to a lack of knowledge and was not intentional.

Respondent's alleged lack of knowledge or intent, even if true, does not support her contention that she did not violate the SFI filing requirement. Contrary to Respondent's arguments, Section 20-610 does not require that the Board provide individual notice of the obligation to file an SFI. Such notice cannot, therefore, be a *prima facie* element required to prove a violation of the SFI filing requirement. Accordingly, the Executive Director has established a *prima facie* showing that Respondent failed to timely file her 2024 SFI in violation of Section 20-610 and Regulation No. 3.

Rather, we conceptually regard Respondent's assertion that she lacked knowledge of the legal requirement to file an SFI as an affirmative defense.⁵ As such, Respondent bears the burden to establish both legally and factually that the Board may not find a violation in this case despite the uncontested *prima facie* evidence. *See* 8 Standard Pennsylvania Practice 2d § 49:66 ("burden of proof is generally upon the defendant to prove all affirmative defenses"). While Respondent's position is understandable, there is no legal basis upon which to find that Respondent's lack of personal notification, even if true, precludes a finding that her late filing constitutes a violation.⁶

⁵ The Supreme Court of Pennsylvania has defined "affirmative defense" as "a defendant's assertion of facts and arguments that, if true, will defeat the plaintiff's ... claim, even if all the allegations in the complaint are true." *Reott v. Asia Trend, Inc.*, 618 Pa. 228, 55 A.3d 1088, 1095 (2012).

⁶ There is no dispute that there are multiple notices about financial disclosure filing requirements outlined in governing law, and that these requirements are amplified in multiple trainings, website notices, and even in the distribution of Rules governing ENP service provided to all of its members. Respondent's argument disregards all of

Pennsylvania courts have long affirmed that ignorance of the law is not a defense. *See, e.g., Good v. Herr*, 1844 WL 4989, at *3 (Pa. 1844) (ignorance of the law furnishes no excuse to any person, either civilly or criminally); *Commw. v. Mittelman*, 154 Pa. Super. 572, 36 A.2d 860 (1944) (lack of knowledge that acts constituted a crime not a defense). Furthermore, the Ethics Code explicitly addresses this issue in Section 20-606(1)(b)(.2), which provides that:

...on or before the tenth day after an individual becomes a City officer or employee, each head of a City department shall provide a copy of this Chapter to all such new officers or employees. Upon receipt of a copy of this Chapter, the City officer or employee shall sign a written statement that such officer or employee has read and shall conform with the provisions of this Chapter, and this statement shall be placed in the City officer's or employee's personnel file. *Failure of a City officer or employee to receive a copy of this Chapter, failure to receive and sign such written statement, or failure to maintain the written statement on file shall have no effect on the duty of the City officer or employee to be in compliance with this Chapter.*

(emphasis added). This provision supports the principle that a lack of knowledge of the requirements of the Ethics Code is not a basis upon which to excuse an officer or employee from compliance. In placing the responsibility to distribute ethics materials on City departments, the Ethics Code recognizes that City managers – rather than the Board or its staff – are best positioned to provide prompt notice of ethics requirements to new City officers and employees. Similarly, while the Ethics Code requires the Board of Ethics to create educational materials and develop and conduct training, the responsibility to *attend* training and to be familiar with reporting requirements falls on the individual officer or employee. Philadelphia Code §20-606(1)(b)(.1).

these notices, and contends that she was entitled to personal, individualized notice about her filing responsibilities from the Board of Ethics.

Respondent does not assert that the Board failed to publish educational materials or to provide ethics training to City officers and employees.⁷ Rather, Respondent's position is that she did not know she was required to file and therefore did not intentionally fail to do so. The law does not require, however, that employees and officers be *personally notified* of the need to file an SFI. Moreover, ample notice of disclosure filing requirements has been provided in the law, as well as through trainings, website resources, and Board outreach generally and directly to the ENP. Clearly, each public servant is required to know and comply with governing ethics rules when they accept official responsibility. City officials, therefore, remain responsible for failure to comply even where they lack such knowledge.

Accordingly, after consideration of the evidence and arguments of both parties, we find that Respondent failed to timely file her 2024 SFI in violation of Section 20-610 and Regulation No. 3.

VII. PENALTY

Section 20-612 authorizes the Board to assess civil monetary penalties for violations of the Ethics Code as described in Chapter 20-1300. Section 20-1302 sets a base penalty of \$1,000 that the Board may increase based on aggravating factors or decrease based on mitigating factors. Section 20-1302(2)(a) directs the Board to "make factual findings regarding mitigating factors and aggravating factors." Section 20-1302(2)(b) provides:

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

⁷ While not legally required to support a finding of a violation, we again note that Board staff presented ethics training to the ENP on February 1, 2024 (as well as at least two ethics trainings open to all City officers and employees during the time the ENP was convened). *See supra* pages 6-7. Board staff also provided multiple Financial Disclosure Info Sessions via Zoom leading up to the May 1, 2025, deadline. *Id.* In addition, the Board's website contains extensive resources available to the public about financial disclosure requirements for City employees and officers. *See* <https://www.phila.gov/departments/board-of-ethics/financial-disclosure/>.

We read the plain language of this provision to mean that if the Board finds a violation in an administrative enforcement proceeding, it may neither waive the monetary penalty nor impose a monetary penalty of less than \$250 per violation. Thus, Section 20-1302(2)(b) effectively sets a minimum penalty of \$250 per violation even if more than two mitigating factors are present.

The Executive Director proposed a penalty of \$1,000.⁸ (*See* Notice at 4.) Respondent argues that the Board should not assess any monetary penalty. (Resp. at 5.) The Board is directed to make specific factual findings as to mitigating or aggravating circumstances. Accordingly, we examine whether the evidence submitted in this case supports any mitigating or aggravating factors.

a. Aggravating Factors⁹

Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, we find no aggravating factors and turn to consideration of mitigating factors.

b. Mitigating Factors

Section 20-1302(1)(a) lists the following mitigating factors:

- (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
- (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
- (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

⁸ The Executive Director did not present any argument in support of either enhancement or reduction of the penalty.

⁹ Section 20-1302(1)(b) lists the following aggravating factors:

- (.1) *Intent*. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
- (.2) *Repeat violation*. The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
- (.3) *Obstruction of investigation*. The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

Regulation No. 3, Paragraph 3.19 describes mitigating factors in similar, though not identical, terms: “[m]itigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics.”¹⁰

1. Good faith effort to comply

Basic principles of statutory construction require that a “good faith effort to comply” have some meaning separate from “prompt corrective action.” *See* 1 Pa. C.S. §1921(a) (“[e]very statute shall be construed, if possible, to give effect to all of its provisions”). While this distinction may vary depending on the type of violation at issue, we find that where the law requires filing by a date certain, a good faith effort to comply necessarily requires some attempt to timely fulfill the disclosure obligation. Thus, an untimely disclosure – particularly one made weeks or months after the deadline – is not a good faith effort to comply.

There is no evidence before us that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, we find that Respondent did not make a good faith effort to comply. This finding does not imply that Respondent acted in *bad* faith. Rather, the result is dictated by the absence of any facts showing that Respondent tried to file on or before the May 1 deadline.

2. Prompt corrective action

Having found that the time for corrective action for a filing is necessarily distinct from the initial filing deadline, we consider when late filing of disclosures can nonetheless be sufficiently “prompt” to warrant mitigation of a penalty. Black’s Law Dictionary defines “prompt” as “done quickly, immediately, or at the right time; performed without delay.” Black’s Law Dictionary (12th ed. 2024). To maintain a distinction between good faith efforts to comply

¹⁰ The Hearing Officer concluded that the Board has the authority to consider additional mitigating factors “in order to promote justice, consistent with the overall objectives of the Board of Ethics.” *See* Report & Recommendation at 21-22 (citing Pennsylvania statutory construction law). We agree with this conclusion and its reasoning.

and prompt corrective action in the disclosure context, we find that whether a filer acted “quickly” or “without delay” must be measured not from the filing deadline, but instead from the point at which they knew of the defect and reasonably understood how to correct it.

Respondent corrected her failure to file by filing her 2024 SFI on September 25, 2025. We must determine whether, considering all of the facts and circumstances before us, this corrective action was sufficiently *prompt*. As explained below, we find that Respondent’s filing on September 25, 2025, constituted reasonably prompt corrective action sufficient to warrant mitigation of the required penalty.

We emphasize that failure to read communications from the Board or its staff does not absolve a City officer or employee of their obligation to comply with the City’s ethics rules. Ultimately, Respondent bears the responsibility of checking all email addresses associated with her City service or, if such addresses are no longer active, informing the City of changes in her contact information. That said, the Executive Director does not contend that Respondent willfully ignored emails from Board staff. While Board staff made reasonable and commendable efforts to notify Respondent at her last known email address, the evidence supports Respondent’s contention that she did not actually use her ENP email address after the work of the ENP concluded. We find, therefore, that Respondent did not actually know that her 2024 SFI was overdue until she received a telephone call in late July 2025.

According to Respondent, she did not understand what she needed to file or how to file it until she received filing assistance by telephone on September 25, 2025. With this assistance, Respondent filed her SFI on the same day. Neither party submitted any evidence detailing the content of communications that may have occurred between the July 2025 phone call and Respondent’s September 2025 filing. The only evidence of record as to Respondent’s

understanding of what corrective action was necessary consists of Respondent's own statements. While the Board is concerned at what could be interpreted as a lack of urgency on the part of Respondent, in the absence of any conflicting evidence, we find that Respondent filed promptly once she both knew of the deficiency and received the assistance she needed to correct it. Accordingly, we reduce the \$1000 by \$500 in accordance with Section 20-130(2)(b). In doing so, we rely on the particular facts of this case and do not make any broader findings as to whether corrective action would be considered "prompt" under any other circumstances.

3. Prompt self-reporting

Section 20-1302(1)(a)(.3) describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. We cannot, therefore, mitigate the penalty on the basis of self-reporting.

4. Other mitigating factors

Section 20-609(1)(a)(.4) authorizes the Board to consider additional mitigating factors identified by the Board through regulation. While Regulation No. 3., Paragraph 3.19 does not list any additional mitigating factors, it notes that "[m]itigating factors that the Board may consider *include*" the listed factors. The Board has consistently used "include" or "including" when providing non-exclusive lists of factors or characteristics in regulations. Accordingly, Paragraph 3.19 grants the Board the authority to consider additional mitigating factors in order to promote justice, consistent with the overall objectives of the Board of Ethics. *See* 1 Pa. C.S. §1928(c) (except for statutes in categories listed in (b), "provisions of a statute shall be liberally construed to effect their objects and to promote justice").

We now consider whether the evidence supports the application of any additional mitigating factors. In doing so, we note that our consideration of additional mitigating factors is not mandatory and is based on the full picture of Respondent's City service and actions related to

compliance. Respondent raised several arguments about the appropriateness of a penalty that do not fit into the enumerated mitigating factors. We will evaluate these arguments grouped into two themes: a) absence of intent to commit a violation and b) need for and reliance on assistance to correct an overdue filing.

a. Absence of intent

Respondent seems to argue that the lack of intent or willfulness in her failure to file should mitigate any penalty. (See, e.g., R's Brief at 4.) The Executive Director points out that while intent is identified as an aggravating factor, the list of mitigating factors is silent as to intent. (ED's Brief at 7.) The inclusion of intent in one part of the penalty statute and its silence in another suggests a choice to exclude absence of intent from the list of mitigating factors. Thus, while Respondent's lack of intent is undisputed, it cannot serve as a basis to reduce the penalty.

b. Need for Assistance and Reliance

Respondent asserts that she did not have the disclosure form and needed assistance to complete and file it. She further contends that she was told during the July 2025 telephone call that all she needed to do to come into compliance was file the 2024 SFI and there was no mention of a monetary penalty for a late filing. (R's Brief at 3.)

The Executive Director asserts that this call was not with Board staff (and suggests that it may have been with someone from the office of the Chief Integrity Officer), but he has not presented any evidence to support that assertion. (See ED's Brief at 6, n.4.) While Board staff made reasonable efforts to apprise Respondent of the potential for a penalty (Id. at 5-6, Ex. D, Decl. of A. Kramer.), Respondent asserts that she was unaware of this information as it was sent to an inactive email account. Instead, Respondent relied on what was communicated to her by telephone beginning in July 2025. Regardless of who actually spoke with Respondent on the

telephone, Respondent understood that she had some amount of time to figure out what needed to be done, and to obtain assistance in filing a completed disclosure statement. According to Respondent, there was no mention of a penalty on the telephone call, only an assurance that all she needed to do was file.

While Respondent's reliance on imperfect advice does not absolve relieve Respondent of her responsibility to file, it is an appropriate basis on which to consider mitigation of a monetary penalty. We find the specific, uncontested facts in this case support that Respondent's reasonable reliance on the impression given during the July 2025 telephone call is a second mitigating factor in this case. Accordingly, we reduce the \$1,000 penalty by a total of \$750, consistent with Section 20-1302(2)(b). Accordingly, a civil monetary penalty of \$250 shall be imposed for Respondent's violation.

VIII. CONCLUSION

For the reasons stated above, we find that the undisputed evidence shows that Respondent was required to file an SFI for 2024 because she served on the ENP during that year, but failed to file by May 1, 2025, in violation of Code Section 20-610 and Regulation No. 3. Additionally, we find that the evidence supports the application of two mitigating factors. Accordingly, the Board imposes a civil monetary penalty of \$250 to be paid within thirty-five (35) days of the issuance and mailing of this Final Determination and the accompanying Order.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Acting Chair
Hon. Nelson A. Diaz (Ret.), Member
Jim Engler, Esq., Member
Wesley R. Payne, IV, Esq., Member
Hon. Idee C. Fox (Ret.), Member

**BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA**

J. Shane Creamer, Jr.
Executive Director
Board of Ethics
of the City of Philadelphia
1515 Arch Street, 18th Floor
Philadelphia, PA 19102

Matter No: 2510ET24

v.

Dee Dukes

deedukes33@gmail.com

HEARING OFFICER’S REPORT & RECOMMENDATION

I. Introduction

On October 23, 2025, J. Shane Creamer, Jr., Executive Director of the Board of Ethics, filed a Notice of Administrative Enforcement Proceeding (“Enforcement Notice”) against Dee Dukes (“Respondent”), a former member of the Educational Nominating Panel. The Enforcement Notice alleges that Respondent violated the Philadelphia Code by failing to timely file a Statement of Financial Interest as required by Philadelphia Code Section 20-610 and Board Regulation No. 3.

It is undisputed that Respondent served on the Educational Nominating Panel (“ENP”) during calendar year 2024 and that the Philadelphia Code and Board of Ethics regulations require members of the ENP to file an annual Statement of Financial Interest (“SFI”) no later than May 1 of each calendar year that they hold office and by May 1 of the calendar year after they leave office. Respondent admits that she did not file her SFI for 2024 until September 25, 2025, several months after the deadline for filing.

While Respondent acknowledges that she did not timely file the required SFI, she denies that she violated the Philadelphia Code because she alleges that she was not aware that she needed to file an SFI in 2025 once her service on the ENP ended in 2024. She further contends that she did not receive proper notice of her responsibility for filing and that her failure to timely file was not intentional. Finally, she argues that a civil monetary penalty should not be imposed in this case because Board of Ethics staff did not adequately inform her of her delinquent filing status and led her to believe that a penalty would not be imposed as long as she ultimately filed.

II. Procedural History

The Executive Director of the Board of Ethics commenced this enforcement action on October 23, 2025, by filing a Notice of Administrative Enforcement Proceeding in which he alleged that Respondent violated Philadelphia Code Section 20-610, as interpreted by Board of Ethics regulations, when she failed to file a required Statement of Financial Interest on or by May 1, 2025. Respondent was granted an extension of time to respond and on November 17, 2025, Respondent filed a Response to Notice of Administrative Enforcement Proceeding (“Response”). In her Response, Respondent affirmatively waived her right to a hearing in this matter, stating that “she does not wish to request a hearing and waives the right to a hearing.” (Resp. at 2, Part III.)

On November 19, 2025, the Hearing Officer issued a Briefing Order to the parties. In accordance with the Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2, the Executive Director may file a brief in support of the Enforcement Notice if a respondent does not request a hearing. The Briefing Order required the Executive Director to file his brief on or by December 1, 2025. The Briefing Order further gave the Respondent the right to file a responsive brief within fourteen days of service of the Executive Director’s brief.

The Executive Director filed a Brief in Support of the Notice of Administrative Enforcement Proceeding on December 1, 2025, and, after the granting of an extension of time to the Respondent, the Respondent filed a Brief in Opposition to Notice of Administrative Enforcement Proceeding on January 5, 2026. On February 19, 2026, the Hearing Officer issued an Order to Close the Administrative Record, informing the parties that the Administrative Record in this case would close on February 24, 2026.

III. Facts

Respondent Dee Dukes was appointed by Mayor Cherelle L. Parker to serve on the ENP in January 2024. The ENP screens and selects potential nominees for the Board of Education. Charter §12-207. Upon taking office, the Mayor is required to convene the ENP no later than February 1 of the year in which the Mayor's term begins. *Id.* at (a).

The ENP has a short timeframe in which to solicit nomination submissions, review those submissions, and provide the Mayor with three potential nominees for each seat on the Board of Education. *Id.* at (b). The ENP's work concludes upon sending a list of nominees to the Mayor. *Id.* While individuals remain members for a period of four years, the ENP functionally does not exist as an entity unless and until it is reconvened to fill a vacancy on the Board of Education. *Id.* at (a)(2).

The ENP appointed by Mayor Parker held its first public meeting on February 1, 2024. (ENP Official Transcription of Minutes, Feb.1, 2024, Executive Director's Brief ("ED's Brief") at Ex. B ("ENP Tr.")). Respondent attended that meeting. *Id.* The ENP appears to have held its last public meeting on March 12, 2024. (ENP Meeting Agenda for March 12, 2024, available at <https://www.phila.gov/media/20240311151759/ENP-Second-Public-Meeting-Agenda-pdf.pdf>).

At the ENP's first public meeting, the official minutes record that the first order of business was the adoption of the Rules of Procedure for the ENP. These rules were circulated to members of the ENP and made publicly available on the ENP's website. (Stmt. of John Dolan, ENP Tr. at 1.) The ENP Rules of Procedure published on the ENP's website include a summary of ethical and legal responsibilities of ENP members, including the responsibility for financial disclosure filings. (See ENP Rules of Procedure, Feb. 2024, available at <https://www.phila.gov/media/20240213174056/2024-Educational-Nominating-Panel-Rules-of-Procedure.pdf> at 3.)

The Ethics Code requires certain individuals to file a Statement of Financial Interest. Philadelphia Code § 20-610(1). Members of the Educational Nominating Panel are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Philadelphia Code § 20-610(1); Board Regulation No. 3. Since the ENP met and conducted business in 2024, its members were required to file SFIs by May 1, 2025.

Respondent did not file an SFI by May 1, 2025. On May 8, 2025, Alex Kramer, an Investigative Analyst for the Board of Ethics, sent a letter by email on Board letterhead to Respondent advising her that she was required to file a Statement of Financial Interest by May 1, 2025, and that the Board had not yet received her 2024 Statement of Financial Interest. The letter informed Respondent that she had "30 days to cure this defect," after which the matter would be referred to the Board's Enforcement division for appropriate action. Mr. Kramer provided his email address and his telephone number in his letter in case Respondent had any questions. (ED's Brief, Exs. D and E.)

When the Board staff did not hear from Respondent, Mr. Kramer sent a follow-up email to Respondent on May 22, 2025. This email informed Respondent that the electronic filing

system still reflected the absence of a disclosure filing by Respondent and it reminded her of the thirty-day period in which to come into compliance with filing requirements. (ED's Brief, Exs. D and E.) Mr. Kramer sent another email to Respondent on June 13, 2025, attaching an additional compliance letter that set a deadline of June 30, 2025, in which to file the overdue Statement of Financial Interest. In this second compliance letter, Mr. Kramer informed Respondent that the failure to file a Statement of Financial Interest could result in a civil monetary penalty of up to \$2,000, and that she should contact him as soon as possible at his email address. (*Id.*)

The forgoing emails and compliance letters sent by Mr. Kramer were all sent to Respondent at her ENP email address of "dukes.phillyeducationpanel2024@gmail.com." At the recommendation of City staff assigned to the ENP, Respondent created this Gmail account exclusively for confidential correspondence related to the ENP. (Respondent's Response ("Resp.") at 2.) As Respondent understood it, keeping ENP matters separate from her personal and business matters would be useful in the event of a public records request under the Right to Know Law. (*Id.*)

Respondent does not state how often or during which time period she used her ENP email address, nor does she state whether she provided any other email addresses to ENP or other City personnel prior to May 1, 2025. In addition, Respondent does not claim that she lacked the ability to access her ENP email account. Instead, Respondent states that her ENP email address was not an "active" email account after the ENP's work ended. (*See* Respondent's Brief ("R's Brief") at 6; Resp. at 3.)¹ Despite the several emails and compliance letters sent to Respondent at her ENP email address, Respondent states that she did not receive any of the above compliance

¹ I note for the record that while Respondent requested (and was provided) paper copies of documents in this enforcement proceeding by U.S. mail addressed to her home address, Respondent has also received and responded to emails since the filing of the Enforcement Notice utilizing an email address of deedukes33@gmail.com (hereafter the "personal email" address).

messages. (Resp. at 3.) Further, she asserts that she was not provided with information or documents regarding an overdue SFI filing for 2024 until she received a phone call “at the end of July 2025.” (Resp. at 2); Respondent also claims that she did not receive onboarding materials, training, or reminders during her ENP service. (R’s Brief at 3.)

The Executive Director did not offer any evidence relating to training, emails, or other information Respondent may have been sent or received in advance of the May 1, 2025 filing deadline. I do note, however, that published Board records show that Board staff presented ethics training to the ENP on February 1, 2024.² Bd. of Ethics Public Mtg. Minutes for Feb. 21, 2024, Attachment B, Feb.16, 2024 Gen. Counsel’s Rpt. at 1 *available at* <https://www.phila.gov/media/20240412110351/BOE-minutes-20240221.pdf>. Board staff also held additional General Ethics and Financial Disclosure Info Sessions available to all City officers and employees in 2024 and 2025. *Id.* (General Ethics Feb. 14, 2024); *see also* Bd. of Ethics Public Mtg. Minutes for Mar. 20, 2024, Attachment B, Mar. 15, 2024 Gen. Counsel’s Rpt. at 1 *available at* <https://www.phila.gov/media/20240517103341/BOE-minutes-20240320.pdf> (General Ethics Mar. 26 & Apr. 11, 2024; Financial Disclosure Mar. 21 & Apr. 3, 2024); Bd. of Ethics Public Mtg. Minutes for Mar. 19, 2025, Attachment B, Mar. 14, 2025 Gen. Counsel’s Rpt. at 2 *available at* <https://www.phila.gov/media/20250523125814/BOE-minutes-20250319.pdf> (Financial Disclosure Mar. 12, 2025); Bd. of Ethics Public Mtg. Minutes for Apr. 16, 2025, Attachment B, Apr. 10, 2025 Gen. Counsel’s Rpt. at 2 *available at* <https://www.phila.gov/media/20250523125847/BOE-minutes-20250416.pdf> (Financial Disclosure Mar. 26 & Apr. 10).

² I take judicial notice of the Board’s monthly public session meeting minutes. The monthly General Counsel’s Report is attached to these minutes and includes a calendar of the trainings provided in the interval since the last such report. Thus, the Board’s public session minutes for February 21, 2024, contain a calendar detailing all training presented by Board staff between January 13, 2024, and February 16, 2024.

Respondent contends that she did not receive any of the compliance emails sent after the May 1, 2025, deadline. (Resp. at 4.) Instead, she asserts that a member of the Board’s staff called her on her cell phone at the end of July 2025.³ She does not identify the name of the individual who called her. According to Respondent, this call was the first time she learned that she had to file an SFI for 2024. (Resp. at 2, R’s Brief at 3.) Respondent asserts that she was told by this individual that all she needed to do was file her disclosure statement, and there was no mention of a potential penalty for having failed to do so. (Resp. at 2-3.)

Respondent further alleges that during the July telephone call she provided the caller with her personal email address. (Resp. at 2-3.) She asked for a copy of the SFI form, which she “eventually” received via email. (*Id.*) Respondent asserts that while she received the SFI form electronically, she did not understand how to complete it. (*Id.* at 3.) On September 25, 2025, Respondent obtained help from an unnamed individual to complete the SFI form, and she filed the form electronically that same day. (*Id.*) Respondent did not offer any email messages, telephone records, or other documents evidencing the existence, timing, or content of these alleged contacts with a Board staff member.

The Executive Director disputes that the Respondent’s telephone call in July 2025 was with a Board staff member, positing that this call may have been with a member of the Chief Integrity Officer’s staff. (ED’s Brief at 6, n.4.) The Executive Director does not address whether he agrees that a member of Board staff provided filing assistance to Respondent on September 25, 2025.

³ In her Response, Respondent states that she received this phone call at the end of July 2025. Resp. at 2. In her Brief in Opposition, she states that the call took place in July or August 2025. (R’s Brief at 1, 4, 5.)

IV. Governing Law

The governing law applicable to financial disclosure requirements for members of the Educational Nominating Panel is set forth in the following Philadelphia Code provisions and Board of Ethics regulations.

Philadelphia Code

§ 20-601. Definitions.

(4) *Board or commission member.* A member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order.

§ 20-606 Board of Ethics

(1) *Powers and Duties.*

(b) *Mandatory Training and Education.*

(.1) The Board shall have the responsibility of training and educating all City officers and employees regarding the standards of conduct and ethics. In fulfilling this responsibility, the Board shall prepare and disseminate educational materials regarding the provisions contained within this Chapter and related interpretive regulations, including a Code of Ethics Manual, and shall develop and conduct routine and mandatory educational and training programs for all City officers and employees. The Board shall consult with City departments and agencies in developing and conducting routine and mandatory educational and training programs for all City employees. Failure to attend a mandatory ethics program shall be deemed a violation of this Chapter.

(.2) Within sixty (60) days of the effective date of the Ordinance adding this provision to The Philadelphia Code, each head of a City department shall provide a copy of this Chapter to all employees under his or her direction. Thereafter, on or before the tenth day after an individual becomes a City officer or employee, each head of a City department shall provide a copy of this Chapter to all such new officers or employees. Upon receipt of a copy of this Chapter, the City officer or employee shall sign a written statement that such officer or employee has read and shall conform with the provisions of this Chapter, and this statement shall be placed in the City officer's or employee's personnel file. Failure of a City officer or employee to receive a copy of this Chapter, failure to receive and sign such written statement, or failure to maintain the written statement on file shall have no effect on the duty of the City officer or employee to be in compliance with this Chapter.

(e) *Financial Disclosure.*

(.2) The Board shall issue rules and regulations concerning the filing of Statements of Financial Interest for the purpose of ensuring compliance by all City officers and employees with the applicable provisions of financial disclosure law. The Board shall investigate any instances of non-compliance and take appropriate action.

§ 20-610. Statement of Financial Interests.

(1) The following individuals shall file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the individual leaves such office. All such individuals who take office after the effective filing date or less than thirty (30) days before the effective filing date must file a statement of financial interest for the preceding calendar year within thirty (30) days of taking office.

(e) Members and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation;

§ 20-612. Penalties and Other Consequences of Violations.

(1) Penalties for violations of this Chapter shall be as set forth in [Chapter 20-1300](#).

§ 20-1302. Penalties for Other Violations; Mitigating and Aggravating Factors.

All other violations of Chapters 20-600 or 20-1000 shall be subject to a fine or civil penalty of one thousand dollars (\$1,000), subject to the following provisions.

(1) Definitions. For purposes of this Section the following definitions apply.

(a) Mitigating Factors. The following are mitigating factors:

(.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.

(.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.

(.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors.* The following are aggravating factors:

(.1) *Intent.* The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.

(.2) *Repeat violation.* The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.

(.3) *Obstruction of investigation.* The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

(2) *Consideration and Effect of Mitigating Factors and Aggravating Factors.*

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section [20-1302](#) shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

(c) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section [20-1302](#) shall be increased by one thousand dollars (\$1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars (\$2,000).

Board Regulation No. 3

SUBPART B. WHO MUST FILE A STATEMENT OF FINANCIAL INTERESTS

3.6 Nominating Panels. A member of the Educational Nominating Panel, Civil Service Panel, Citizens Police Oversight Commission Selection Panel, or Finance Panel, but only when the panel is convened.

SUBPART C. FILING STATEMENTS OF FINANCIAL INTERESTS

3.7 Filing Deadline

a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.

b. An individual who takes office after the first day of April shall file within 30 days of taking office.

Example 4) A nominating panel listed in Paragraph 3.6 convenes on September 15, 2021, and concludes its work on November 1, 2021. The panel's members must each file a Statement of Financial Interests with the Board by October 15, 2021, disclosing information related to calendar year 2020. They must also each file a Statement of Financial Interests with the Board by May 1, 2022, disclosing information related to calendar year 2021.

SUBPART E. PENALTIES

3.19 An officer or employee of the City who violates any of the restrictions set forth in this Regulation shall be subject to a civil penalty of up to \$2,000 for each such violation. In determining the appropriate amount of monetary penalty, the Board may consider both mitigating and aggravating factors. Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

V. Application of SFI Filing Requirements to this Enforcement Proceeding

Philadelphia Code Section 20-610(1)(e) and Board Regulation No. 3, Paragraph 3.6 require members of the listed City nominating panels to file an SFI disclosing specific financial information for each year in which they served on that nominating panel. Under Code Section 20-610 and Board Regulation No. 3, Paragraph 3.7(a), the SFI must be filed by May 1 of each year that the filer holds office *and of the year after the filer leaves such office*.

Respondent admits that she was a member of the ENP in 2024. As a result, she was required to file an SFI for 2024 no later than May 1, 2025. Respondent admits that she did not file a 2024 SFI until September 25, 2025. Nonetheless, Respondent contends that because she did not have personal knowledge or notice of this requirement in advance of the deadline, she should not be found to have violated the law. She further contends that a penalty would be inappropriate in this case because she did not have a meaningful opportunity to comply before the deadline and she filed her 2024 SFI once she obtained assistance in completing and filing the form.

IV. Recommendation

The Executive Director alleges that Respondent violated the Ethics Code by failing to file her 2024 SFI by May 1, 2025. (Enforcement Notice at 4, ¶8.) To establish a *prima facie* case that Respondent violated the SFI filing requirement for 2024, the Executive Director must establish by a preponderance of the evidence that Respondent held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3, that she served in that position in 2024, and that she did not file an SFI by May 1, 2025.

Respondent admits that she served on the Educational Nominating Panel in 2024, and as such she was clearly required to file a 2024 SFI by May 1, 2025. Members of the Educational Nominating Panel must file statements of financial interest disclosing their interests for the calendar year preceding their appointment as well as any calendar year during which the panel was convened under Board of Ethics Regulation No. 3, Paragraph 3.6. It is undisputed that Respondent participated in ENP meetings in 2024 but did not file a 2024 SFI until September 25, 2025. (Resp. at 4-5, ¶¶3, 6, 8.) Accordingly, I find that the Executive Director has established a *prima facie* showing that Respondent violated her 2024 SFI filing requirement.

Nonetheless, Respondent contends that she should not be found to have violated her financial disclosure requirement for 2024 because she did not know she was required to file an SFI for 2024. (Resp. at 5, ¶8.) More specifically, she contends that a) the “Board must provide proper notice to the individual so as not to prejudice the rights and responsibility of an individual.” (Resp. at 2.); b) she did not receive any training or documents relating to the SFI requirement during her ENP service (Resp. at 4; R’s Brief at 3); c) she was not told during or after her service on ENP that she must file an SFI after her ENP service ended (Resp. at 2, R’s Brief at 2); d) she was not told during the convening of the ENP that late filing of an SFI could result in a penalty (Resp. at 4); and e) she did not receive any reminders to file an SFI until after

the May 1, 2025 deadline had already passed (Resp. at 3; R's Brief at 3.) In essence, she argues that while she did not timely file her 2024 SFI, her failure to do so was due to a lack of knowledge and was not intentional.

In response, the Executive Director argues that Respondent's alleged lack of knowledge or intent in failing to timely file her 2024 SFI, even if true, does not support her contention that she did not violate the SFI filing requirement. (ED's Brief at 6-7.) Moreover, the Executive Director notes that the ENP email address to which several delinquent compliance notices were sent to her remained under her control during this period of time, and even when advised in a telephone call in May 2025 of her overdue responsibility, she took an additional two months to file her 2024 SFI.

For the reasons discussed below, I recommend that the Board find that Respondent violated Philadelphia Code Section 20-610 by failing to file an SFI for 2024 by May 1, 2025.

Because the prima facie elements of a violation are undisputed,⁴ Respondent's assertion that she lacked knowledge of the legal requirement to file an SFI may be regarded conceptually as an affirmative defense.⁵ As such, Respondent bears the burden to establish both legally and factually that the Board may not find a violation in this case despite the uncontested prima facie evidence. *See* 8 Standard Pennsylvania Practice 2d § 49:66 ("burden of proof is generally upon the defendant to prove all affirmative defenses"). While Respondent's position is understandable,

⁴ The Executive Director correctly points out that Section 20-610 does not require that he prove that Respondent was individually notified of the obligation to file an SFI for 2024. (ED's Brief at 4-5.) Therefore, I do not treat such a notice claim as a prima facie element for proving a violation of the SFI filing requirement.

⁵ The Supreme Court of Pennsylvania has defined "affirmative defense" as "a defendant's assertion of facts and arguments that, if true, will defeat the plaintiff's ... claim, even if all the allegations in the complaint are true." *Reott v. Asia Trend, Inc.*, 618 Pa. 228, 55 A.3d 1088, 1095 (2012).

I find that there is no legal basis upon which I may find that Respondent's lack of personal notification, even if true, precludes a finding that a violation has occurred in this matter.⁶

Pennsylvania courts have long affirmed that ignorance of the law is not a defense. *See, e.g., Good v. Herr*, 1844 WL 4989, at *3 (Pa. 1844) (ignorance of the law furnishes no excuse to any person, either civilly or criminally); *Commw. v. Mittelman*, 154 Pa. Super. 572, 36 A.2d 860 (1944) (lack of knowledge that acts constituted a crime not a defense). Furthermore, the Ethics Code explicitly addresses this issue in Section 20-606(1)(b)(.2), which provides that:

...on or before the tenth day after an individual becomes a City officer or employee, each head of a City department shall provide a copy of this Chapter to all such new officers or employees. Upon receipt of a copy of this Chapter, the City officer or employee shall sign a written statement that such officer or employee has read and shall conform with the provisions of this Chapter, and this statement shall be placed in the City officer's or employee's personnel file. *Failure of a City officer or employee to receive a copy of this Chapter, failure to receive and sign such written statement, or failure to maintain the written statement on file shall have no effect on the duty of the City officer or employee to be in compliance with this Chapter.*

(emphasis added). This provision supports the principle that a lack of knowledge of the requirements of the Ethics Code is not a basis upon which to excuse an officer or employee from compliance. The provision places the responsibility to distribute ethics materials on City departments and recognizes that City managers – rather than the Board or its staff – are best positioned to provide prompt notice of ethics requirements and resources to new officers and employees. Similarly, while the Ethics Code requires the Board of Ethics to create educational materials and develop and conduct training, the responsibility to *attend* training and to be

⁶ There is no dispute that there are multiple notices about financial disclosure filing requirements outlined in governing law, and that these requirements are amplified in multiple trainings, website notices, and even in the distribution of Rules governing ENP service provided to all of its members. Respondent's argument disregards all of these notices, and contends that she was entitled to personal, individualized notice about her filing responsibilities from the Board of Ethics.

familiar with reporting requirements falls on the individual officer or employee. Philadelphia Code §20-606(1)(b)(.1).

Respondent does not contend that the Board failed to publish educational materials or to provide ethics training to City officers and employees.⁷ Rather, Respondent's position is that she did not know of this requirement, and she did not mean to violate financial disclosure requirements. This defense does not vitiate her responsibility.

The law does not require that employees and officers be *personally notified* of the need to file an SFI. Moreover, ample notice of disclosure filing requirements has been provided in the law, as well as through trainings, website resources, and Board outreach generally and directly to the ENP. Clearly, each public servant is required to know and comply with governing ethics rules when they accept official responsibility.

Accordingly, after consideration of all of the evidence and arguments of the parties, I find that Respondent has violated Philadelphia Code Section 20-610, as interpreted by Board Regulation No. 3.

VI. Imposition of Penalty

Having found that Respondent violated the SFI filing requirement, I must recommend an appropriate penalty. The Ethics Code provides for civil monetary penalties under Section 20-612, which incorporates by reference Philadelphia Code Chapter 20-1300. Section 20-1302 provides

⁷ While not legally required for this Recommendation, I note that the Board provided ethics training to the ENP on February 1, 2024 (as well as at least two ethics training sessions open to all City officers and employees between the first and last meetings of the ENP). *See supra* page 4. In both 2024 and 2025, Board staff also provided multiple Financial Disclosure Info Sessions via Zoom leading up to the May 1, 2025, deadline. *Id.* In addition, the Board's website that is publicly available contains extensive resources relating to financial disclosure requirements governing City employees and officials. See <https://www.phila.gov/departments/board-of-ethics/financial-disclosure/>.

for a civil monetary penalty of \$1,000 that may be increased by aggravating factors or decreased by mitigating factors. Section 20-1302(2) provides instruction regarding the impact of aggravating or mitigating factors on the assessment of a penalty.

Section 20-1302(2) provides:

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

(c) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars (\$1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars (\$2,000).

Accordingly, Section 20-1302(2)(a) requires the Board to make specific factual findings regarding the presence or absence of mitigating and aggravating factors. Section 20-1302(2)(b) provides that the presence of more than one mitigating factor can result in a maximum reduction of \$750 from the \$1,000 required penalty. I understand this provision to mean that the Board may not, after finding a violation, waive the penalty in its entirety or impose a monetary penalty of less than \$250 in this enforcement proceeding. Rather, I accept the Executive Director's position (ED's Brief at 7) that Section 20-1302(2)(b) effectively sets a minimum penalty of \$250 per violation, after consideration of all mitigating factors.

Section 20-1302(1) defines mitigating and aggravating factors as follows:

(a) Mitigating Factors. The following are mitigating factors:

(.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.

(.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.

(.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors*. The following are aggravating factors:

(.1) *Intent*. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.

(.2) *Repeat violation*. The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.

(.3) *Obstruction of investigation*. The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.

(.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

Regulation No. 3, Paragraph 3.19 describes mitigating and aggravating factors in similar, though not identical, terms:

... Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

In this case, the Executive Director requests that the Board impose a penalty of \$1,000 for an SFI disclosure violation. He asserts that there are neither mitigating nor aggravating factors present in this case. (Enforcement Notice at 4.) However, as discussed below, I find that there are mitigating factors present in this case that must be considered.

Aggravating factors

Neither party has alleged or presented any evidence of aggravating factors in this case.

Accordingly, I find no aggravating factors and turn my consideration to mitigating factors.

Mitigating factors

Good faith effort to comply

Respondent argues that the Board should not assess any monetary penalty. (Resp. at 5.) Specifically, Respondent argues that Philadelphia Code Section 20-610(1) requires “a meaningful opportunity to respond or cure prior to the imposition of enforcement action or penalties.” (R’s Brief at 6-7.) She asserts that she did not have “adequate notice and a meaningful and reasonable opportunity to comply” or avoid a penalty. (*Id.* at 3, 7.) In particular, Respondent takes issue with the use of email, arguing that regular mail is the most reliable and appropriate method of communicating about something that could result in a penalty. (*Id.* at 3-4, 6.) She raises a specific objection to the use of her ENP email address, asserting that Board staff knew or should have known that she would not rely on that email account “indefinitely.” (*Id.* at 6.) All of this, Respondent argues, amounts to a failure to provide due process by not giving “actual or reasonably calculated notice designed to apprise the affected party of the alleged noncompliance.” (*Id.* at 7.)

Respondent further asserts that she made a good faith effort to comply once she received a telephone call in late July 2025 that informed her of her non-compliance and obtained “proper instructions and assistance.” (Resp. at 3.) Essentially, Respondent is attempting to reset the filing clock to begin running in late July 2025. Despite multiple notices of financial disclosure filing requirements contained in the law, regulations, trainings, and website resources, as previously discussed, Respondent appears to argue that her efforts to comply can only be fairly measured from the point at which she had both received a copy of the form and obtained filing assistance

by telephone. In response, the Executive Director argues that the passage of time between the phone call at the end of July 2025 and her filing on September 25, 2025, precludes a finding that Respondent made a good faith effort to comply. (ED’s Brief at 6-7.)

I do not find the argument of either party convincing. Basic principles of statutory construction require that a “good faith effort to comply” have some meaning separate from “prompt corrective action.” *See* 1 Pa. C.S. §1921(a) (“[e]very statute shall be construed, if possible, to give effect to all of its provisions”). While the Board could make this distinction in a variety of ways depending on the type of violation at issue, where the law requires filing by a date certain it is reasonable to conclude that a good faith effort to comply requires some attempt to timely fulfill the disclosure obligation. Where a disclosure is already untimely – particularly where weeks or months have passed since the deadline – the pertinent question is no longer one of good faith compliance but of corrective action.

Respondent’s concerns about notice, instructions, or filing assistance also do not speak to a good faith effort to comply. As discussed above, compliance is the responsibility of the City officer or employee. Just as individual notice is not a prerequisite for a finding of a violation, it does not change the starting point for compliance when examining whether a good faith effort was made. Accordingly, I find that Respondent has not established that she made a good faith effort to comply such that the penalty should be mitigated on that basis. To be clear, this finding does not suggest that Respondent acted in *bad* faith. It simply reflects the undisputed fact that she did not make any attempt to comply by or close to the May 1, 2025, filing deadline.

Prompt corrective action

In contrast, Respondent’s actual knowledge and understanding of her filing obligation is important when considering whether she took prompt corrective action. It is undisputed that

Respondent filed her 2024 SFI on September 25, 2025. The parties appear to differ as to whether this corrective action was sufficiently *prompt*.

Under the facts of this case, I find that Respondent's filing on September 25, 2025, constituted reasonably prompt corrective action to warrant mitigation of the required penalty. Black's Law Dictionary defines "prompt" as "done quickly, immediately, or at the right time; performed without delay." Black's Law Dictionary (12th ed. 2024). As discussed above, the timeframe for corrective action for a disclosure filing is necessarily distinct from the initial filing deadline. Whether Respondent acted "quickly" or "without delay" should be measured from the point at which she unquestionably knew of her deficiency and understood how to correct it.

While I believe that Respondent bears some responsibility for not updating her contact information and for not closing (or checking) an inactive email account associated with exclusive ENP business, the Executive Director does not assert that Respondent actually opened any of the emails sent to her ENP email address. The Executive Director does not contend that Respondent willfully ignored email correspondence. Thus, while Board staff made several reasonable and commendable efforts to notify Respondent at her last known email address, the evidence supports Respondent's contention that she did not actually know that her 2024 SFI was overdue until she had a telephone call in late July of 2025.

This raises the question whether the time interval from the telephone call in late July to the Respondent's filing on September 25, 2025, was too long to be considered as prompt corrective action. Neither party provided copies of any emails or evidence detailing the content of any telephone calls or other communications between the phone call and ultimate filing. The only evidence of record as to Respondent's understanding of what corrective action was necessary consists of Respondent's own statements. According to Respondent, she did not

understand what she needed to file or how to file it until she received filing assistance by telephone on September 25, 2025. With this assistance, Respondent filed her SFI on the same day. In the absence of any conflicting evidence, I find this sufficient to conclude that Respondent filed promptly once she knew not only of her deficiency but received the assistance needed to correct it. Accordingly, I recommend that the \$1,000 penalty be reduced by \$500 in accordance with Section 20-130(2)(b).⁸

Prompt self-reporting

The Ethics Code describes self-reporting as the reporting of a violation to the Board of Ethics. There is no evidence in this case that Respondent at any time contacted Board staff to self-report. Thus, the evidence does not support an application of prompt self-reporting to mitigate the penalty.

Other mitigating factors

Having reviewed the three enumerated mitigating factors, I now consider whether I may weigh any additional mitigating factors in recommending a penalty. Section 20-609(1)(a)(.4) authorizes the Board to consider additional factors identified by the Board through regulation. Regulation No. 3., Paragraph 3.19 does not list any additional mitigating (or aggravating) factors. However, Paragraph 3.19 of Regulation 3 states that in determining the appropriate amount of a monetary penalty, the Board may consider mitigating factors (and aggravating factors) that *include* the specific factors listed there. I interpret this language to mean that the Board may, within its sound discretion, consider other appropriate mitigating factors when assessing a

⁸ This recommendation is based on the specific and unique facts of this case as presented by the parties. This is not a statement about any specific or fixed period of time between notice of a violation and corrective action that would (or would not) be considered prompt under other circumstances.

penalty, and the stated factors in the regulation are intended to guide but are not meant to be exclusive.

Accordingly, I find that Paragraph 3.19 grants authority to consider additional mitigating factors in order to promote justice, consistent with the overall objectives of the Board of Ethics. *See* 1 Pa. C.S. §1928(c) (except for statutes in categories listed in (b), “provisions of a statute shall be liberally construed to effect their objects and to promote justice”).

I now turn to whether the evidence supports the application of any additional mitigating factors. In doing so, I note preliminarily that the Respondent was a volunteer member of the ENP for which she received no compensation. Her work on the ENP was short term and concluded in the early part of 2024, although her ENP email address remained open after the ENP transmitted its recommendations to the Mayor. As a result, it is understandable that Respondent might not have checked her ENP email account in 2025, a year after the ENP concluded its work, especially if she was instructed that the account was to be used only for business limited to the work of the ENP. Consequently, compliance emails sent to this address after the ENP’s work concluded in 2024 may not have been opened or read, even though they were delivered. Once receiving actual notice of her deficiency through a telephone call, Respondent took steps to come into compliance. It is against that backdrop that I consider other mitigating factors.

Specifically, I group Respondent’s arguments against the applicability of a penalty into two themes: a) absence of intent to commit a violation and b) reliance on information provided regarding the urgency (or lack thereof) of correcting an overdue filing.

a) Absence of intent

Respondent seems to argue that the lack of intent or willfulness in her failure to file should mitigate any penalty. (*See, e.g.,* R’s Brief at 4.) The Executive Director counters this argument by pointing out that intent is identified as an *aggravating* factor, but the list of

mitigating factors is silent as to intent. (ED's Brief at 7.) I agree with the Executive Director that the inclusion of intent in one part of the penalty statute and its silence in another suggests a choice to exclude absence of intent from the list of mitigating factors. Thus, while Respondent's lack of intent is undisputed, I do not find that it serves as a mitigating factor that would reduce the penalty.

b) Need for Assistance and Reliance

Respondent asserts that she did not have the disclosure form and needed assistance to complete and file it. She further contends that a monetary penalty is inappropriate in this case because she was told during the July 2025 telephone call that all she needed to do to come into compliance was file the 2024 SFI to resolve the deficiency and there was no mention of a monetary penalty for a late filing. (R's Brief at 3.)

The Executive Director asserts that this call was not with Board staff (and suggests that it may have been with someone from the office of the Chief Integrity Officer), but he has not presented any evidence to support that assertion. (*See* ED's Brief at 6, n.4.) While Board staff made reasonable efforts to apprise Respondent of the potential for a penalty (*Id.* at 5-6, Ex. D, Decl. of A. Kramer.), Respondent asserts that she was unaware of this information as it was sent to an inactive email account. Instead, Respondent relied on what was communicated to her by telephone beginning in July 2025. Regardless of who actually spoke with Respondent on the telephone, Respondent understood that she had some amount of time to figure out what needed to be done, and to obtain assistance in filing a completed disclosure statement. According to Respondent, there was no mention of a penalty on the telephone call, only an assurance that everything would be alright if she filed.

While Respondent's reliance on imperfect advice from a governmental official cannot absolve the violation, it is an appropriate basis on which to consider mitigation of a monetary

penalty. I find this to be a second mitigating factor in this case and therefore recommend that the Board reduce the \$1,000 penalty by a total of \$750, consistent with Section 20-1302(2)(b). Accordingly, I recommend a civil monetary penalty of \$250 be imposed for Respondent's violation.

VII. Conclusion

The undisputed facts support a violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Respondent's alleged lack of knowledge of the filing requirement does not excuse her failure to timely file a financial disclosure statement. Therefore, I recommend that the Board find a single violation of the SFI filing requirement. In addition, the totality of the evidence supports the application of two mitigating factors as previously discussed in this recommendation. Accordingly, I recommend that the Board reduce the \$1,000 per violation penalty by \$750 and impose a monetary penalty upon the Respondent of \$250, as provided in Philadelphia Code Section 20-1302(2)(b).

Respectfully submitted,

Date: March 27, 2026

/s/ Louis S. Rulli, Esq.

Louis S. Rulli, Esq.

Hearing Officer



CITY OF PHILADELPHIA

BOARD OF ETHICS

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June 18, 2026

Via U.S. mail & email

Dee Dukes

[REDACTED]

[REDACTED]

deedukes33@gmail.com

RE: *Executive Director v. Dukes*, Matter No. 2510ET24

Dear Ms. Dukes,

Enclosed are the Board's Final Determination and Order in the above-captioned matter, which are the final agency action in this matter. You may appeal this Final Determination and Order to the Philadelphia Court of Common Pleas within thirty days of the date of mailing.

The Board having issued the Final Determination, the confidentiality restrictions imposed by the Ethics Code and Board Regulation No. 2 no longer apply. The Board will announce the Final Determination by press release some time in the coming days and at the Board's public meeting on June 24, 2026.

In addition, we will post the administrative record from this matter on the Board's website. Before doing so, we will redact the filings and documents to the extent legally required, including the Final Determination and Hearing Officer's Recommendation. Public posting of the record may be delayed due to ongoing updates to the City's web platform.

Please let me know if you have any questions.

Very truly yours,

/s/ Jordana L. Greenwald

Jordana L. Greenwald

General Counsel

City of Philadelphia Board of Ethics

Cc: J. Shane Creamer, Jr., Esq. (via email only)
Richard Barzaga, Esq. (via email only)
Erin Ambrose, Esq. (via email only)